

**Court No. - 4**

**Case :-** WRIT - C No. - 36093 of 2019

**Petitioner :-** Yogendra Prasad

**Respondent :-** State of U.P. and Another

**Counsel for Petitioner :-** Babban Singh Rathore

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Bala Krishna Narayana,J.**

**Hon'ble Vivek Varma,J.**

Heard learned counsel for the petitioner, Mr Mahboob Ahmad, Advocate for the respondents no. 1 & 2 and perused the record.

This writ petition has been filed by the petitioner with the following reliefs:-

(a) Issue, a writ, order or direction in the nature of certiorari quashing the impugned arrears of recovery notice dated 11.10.2019 for Rs. 8,04429/- with surcharge and regulatory charges at the rate of 7.5 % bearing account no. 751723868445 and to restore the electricity supply to the petitioners connection situate in Mauza Gadahi, Garahi Chak Jahirullah Zamaniya, District Ghazipur i.e. Annexure No. (3) to the writ petition.

(b) Issue a writ order or direction in the nature of mandamus directing the respondents not to take any coercive action against the petitioner.

(c) Issue a writ order or direction in the nature of mandamus directing the respondents concerned to accept the correct loan amount in easy installments, otherwise the petitioner will suffer an irreparable loss and injury.

(d) Issue any other writ, order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case.

(d) Award the costs to the petition in favour of the petitioner.

Sri Mahboob Ahmad, learned counsel appearing for the respondents no. 1 &2, at the first instance, has raised a preliminary objection with regard to maintainability of the writ petition on the ground that the dispute which the petitioner is raising by means of this writ petition primarily concerns the accuracy of certain bills raised by the respondents and for redressal of the same, petitioner

has got statutory alternative remedy under Clause 6.5(b) of the UP Electricity Supply Code, 2005.

In rebuttal to the said argument, learned counsel for the petitioner has submitted that since the recovery certificate for recovery of the amount payable under the impugned recovery notice has already been issued and in case, petitioner avails the remedy available to him, and by the time the amount is recovered, in that situation the petitioner shall be left remediless. It is further submitted that liberty be given to petitioner to move an application before the respondent no. 2 i.e. Executive Engineer ventilating all his grievance therein.

In view of above, it is provided that in case petitioner submits any representation ventilating his grievance alongwith certified copy of this order and other relevant documents within a week from today, same will be looked into and decided by respondent no. 2-i.e. Executive Engineer, UP Power Corporation Purvanchal Vidyut Vitran Nigam Ltd, Ghazipur by passing a reasoned and speaking order within a period of four weeks from the date of filing of a certified copy of this order by the petitioner before him along with his representation.

For a period of four weeks from today or till the respondent no. 2 decides the application of the petitioner, whichever is earlier, the recovery proceedings, if any, initiated against the petitioner, pursuant to the impugned recovery notice dated 11.10.2019 shall remain in abeyance.

It is further made clear that in case the petitioner fails to raise his grievance before the respondent no. 2 along with certified copy of this order within the specified period, the writ petition shall stand dismissed without reference to the court and the petitioner shall not be entitled to any benefit of this order.

The writ petition is disposed of.

**Order Date :- 11.11.2019**

RavindraKSingh